

Amendment No. 1 to SB2402

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2402

House Bill No. 1734*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a)

(1) The department shall create a pilot program by which the department records all interviews of children conducted in certain counties by department case managers as part of the department's investigation of claims of abuse or neglect.

(2) The department shall select one (1) county in which to operate the pilot program.

(3) The recording may be an audio recording.

(b) An interview conducted in a county in which the pilot program created by subsection (a) is operational is not required to be recorded if:

(1) The department case manager in good faith believed the interview was being recorded, and a technical issue with the equipment prevented the recording; or

(2) Circumstances that could not have been reasonably foreseen prevented the recording of the interview.

(c) The failure of the department to record an interview pursuant to subsection (a) does not affect the admissibility into evidence of any child statement or other evidence resulting from the interview.

(d) All recordings generated pursuant to this section are confidential pursuant to § 37-5-107.

(e) By December 1, 2027, the department must submit a report to the senate judiciary committee and the committee of the house of representatives with jurisdiction over subject matters pertaining to children on the results of the pilot program, including recommendations on how to improve the pilot program.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.